



Proficiency Testing

Frequently Asked Questions

Q 1. Are proficiency tests (PT) allowed to be used as initial demonstration of capabilities (iDOCs) or continuing DOCs?

A. For PTs that include a minimum of 4 samples, then yes. This is an acceptable approach for an iDOC, as the analyst is being challenged with at least 4 blind samples, which may or may not be spiked with the analyte of concern.

For proficiency tests that do not include a minimum of 4 samples, they can be used as cDOCs.

Q 2. If I made a mistake on a PT that resulted in an unacceptable score for an analyte of concern, how can I get it amended?

A. First, open a corrective action report (CAR) or plan (CAP) to determine the root cause of the unacceptable score. Email labs@ocm.ny.gov with your request to amend the PT score. Attach supporting documentation, including evaluation report and CAR or CAP. The Office will evaluate the information you provided and determine if the request is valid. If the Office determines that the request is valid, the Office will contact the PT provider directly to have the report amended.

Q 3. A PT provider allows one to report Total Molds. Is the reporting of a result for Total Molds interchangeable with Total Yeast & Molds?

A. No. You must report a quantitative result for Total Yeast & Molds.

Q 4. Am I required to report the speciation of the pathogenic *Aspergillus* in the *Aspergillus* PT?

A. Yes. The laboratory must provide a presence or absence result for the four (4) *Aspergillus* organisms regardless of the organism being spiked into the samples.

Q 5. Are PTs required every 6 months for maintaining analyte approval?

A. Yes. Per [Part 130 of Title 9 of New York Codes, Rules and Regulations \(Part 130\)](#) and the current PT guidance, a cannabis laboratory shall attain satisfactory performance in at least two (2) of three (3) consecutive scheduled or unscheduled or supplemental proficiency test in which it has participated in an eighteen (18) month period. At least one (1) of the satisfactory proficiency tests in which a cannabis laboratory has participated in an eighteen (18) month period must be less than six (6) months old.

Q 6. I located a PT study from a provider not listed in the guidance document. How do I go about getting approval to use it?



A. First, you must ensure the provider holds ISO/IEC 17043 accreditation to be a PT provider. Email labs@ocm.ny.gov to request the use of the PT study. Ensure you have attached a copy of the provider's ISO/IEC 17043 accreditation certificate. The Office will evaluate the information you provided and determine if the request is valid. Whether the request is valid or not, the Office will contact you directly.

Q 7. What if my lab chooses to participate in a PT study matrix other than listed in the Office's guidance document?

A. Email labs@ocm.ny.gov to request the use of the PT study in a matrix other than listed in the guidance document. The Office will evaluate the information you provided and determine if the request is valid. Whether the request is valid or not, the Office will contact you directly.

Q 8. Are PTs required to expand my lab's scope of testing?

A. Yes. Per [Part 130 of Title 9 of New York Codes, Rules and Regulations \(Part 130\)](#) and the current PT guidance, to obtain approval for a given analyte or group of analytes on its permit, a cannabis laboratory shall pass two (2) consecutive scheduled or unscheduled or supplemental proficiency tests.

Q 9. My lab is changing the assay used for *Aspergillus* species from Medicinal Genomics to Biomerieux, or vice versa. Are PTs required for approval of the test method SOP?

A. Yes. To gain approval for the test method SOP, a cannabis laboratory shall pass two (2) consecutive scheduled or unscheduled or supplemental proficiency tests.

Q 10. What happens if my lab fails two consecutive PTs for a group of analytes such as terpenes?

A. When a laboratory fails two (2) consecutive PTs, the Office may request a CAR be submitted for review within 30 calendar days of the request. Additionally, your laboratory's status for the group of analytes will be changed from approved to automatically unapproved for that group of analytes.

Q 11. How does my lab get approval reinstated for an analyte such as filth & foreign material because of two consecutive failing PT studies?

A. To change the approval status from unapproved to approved, the laboratory must re-establish a history of two (2) successful proficiency test results out of the three (3) most recent attempts for that analyte tested.

Q 12. I noticed that the PT directions differ from my lab's normal testing and reporting procedures. What do I do?

A. As indicated in the PT guidance, follow the instructions from the PT provider. Additionally, the lab must have a procedure related to handling of samples, including PTs. The procedure will address any deviations needed to conduct the PT.



Q 13. What is the difference between a performance test and proficiency test?

A. There is no difference between the nomenclature listed. If you are unsure of any other terms used by a PTP, reach out to the PTP directly for clarification.

Q 14. For a multi-analyte PT study such as cannabinoids, does the Office include the total and individual results in the PT guidance criteria for passing? For example, my lab reported a result for total tetrahydrocannabinol (THC) and the Δ 9-THC and Δ 8-THC isomers, and the results were acceptable. Is each considered a separate analyte towards the required 10 reportable analytes?

A. First, total THC must be reported for potency profile. The individual THC isomers do not have to be reported. The lab must also report a result for nine other cannabinoids.

If you are unsure how to report a total THC result, contact the PTP directly for directions.

Q 15. My lab participated in a mycotoxins PT study. Our results for total aflatoxins, Aflatoxin B1, Aflatoxin B2, Aflatoxin G2, and Ochratoxin A were acceptable. Our result for Aflatoxin G1 was not acceptable. Does my lab meet the criteria for passing in the PT guidance?

A. No. The lab must report acceptable results for the individual aflatoxins and total aflatoxins.

Q 16. The PT provider does not have a field to report Total Butanes. My lab can report a result for n-Butane and iso-Butane. Will this suffice the PT requirement for this analyte?

A. Yes. The Office will accept the individual results provided both are acceptable.

Q 17. My lab participated in a residual solvents PT study. We reported results for m/p-xylene, o-xylene, and total xylenes. Our result for m/p-xylene was unacceptable. Does my lab meet the criteria for passing in the PT guidance?

A. No. The lab must report acceptable results for the individual xylenes and total xylenes.